

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 04/13/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09>

Meeting ID: 161 108 5023
Passcode: 869677

Courtroom Clerk's session

1. 10:00 AM CASE NUMBER: MSC21-01034

CASE NAME: EDWARDS VS. JAGUAR LAND ROVER

JURY TRIAL 5-7 DAYS

FILED BY:

TENTATIVE RULING:

Continued pursuant to Order entered April 2, 2026.

2. 10:00 AM CASE NUMBER: C23-00011

CASE NAME: KATHLEEN MAGANA VS. SURINDER SINGH SANGHA

JURY TRIAL 7 TO 10 DAY TIME ESTIMATE

FILED BY:

TENTATIVE RULING:

Continued pursuant to Order entered March 23, 2026. Continued trial date is July 27, 2026.

Law & Motion

3. 9:00 AM CASE NUMBER: C23-00358
CASE NAME: RAY SY VS. RODNEY DOTSON
***HEARING ON MOTION IN RE: FOR LEAVE TO FILE AMENDED COMPLAINT**
FILED BY: SY, RAY
TENTATIVE RULING:

Plaintiffs Ray Sy and Violeta Sy ("Plaintiffs") filed a Motion for Leave to File Amended Complaint on November 17, 2025 (the "Motion for Leave to File"). The Motion for Leave to File was set for hearing on April 6, 2026.

Shortly thereafter, on November 25, 2025, defendant Gin Ivy Sevilla filed a Motion to Continue Trial (the "Motion to Continue Trial"). The Motion to Continue Trial was set for hearing on April 13, 2026.

Both motions were subsequent set for hearing on the same date, April 13, 2026.

Background

Plaintiffs filed their initial Complaint on February 16, 2023 (the "Complaint").

Defendants Rodney James Dotson and Business Alliance Insurance Company answered on April 7, 2023.

Defaults were entered on August 23, 2023 as to defendants Gin Ivy Sevilla and Civver Construction Design, Inc. Defendant Suretec Insurance Company was dismissed on January 29, 2024. Defendant Gin Ivy Sevilla later answered the Complaint after the default was set aside.

In June 2025, a trial date was set for January 12, 2026.

On November 17, 2025, Plaintiffs filed their Motion for Leave to File to "to add a specific prayer or recovery of a statutory \$500 plus attorney's fees under Business & Professions Code section 7160 in connection with an existing fraud in the inducement claim arising from a home improvement contract."

At the December 11, 2025 Issue Conference, the January 12, 2026 trial date was confirmed. Later, by ex parte application, the Court continued the January 12, 2026 to a date to be set by trial setting conference. At that trial setting conference on January 28, 2026, an OSC and Case Management Conference was set for March 20, 2026. At the March 20, 2026 trial setting conference, the Court resolved to set the matter for a further Case Management Conference on September 23, 2026. No new trial date has been set to date.

Analysis

1. Motion for Leave to File

The court has discretion "upon any terms as may be just" to allow an amendment to any pleading. Code Civ. Proc. § 473(a)(1); see Rule 3.1324 of California Rules of Court ("CRC"); see also *Hong Sang Market, Inc. v. Peng* (2018) 20 Cal.App.5th 474, 488 ("*Hong Sang Market, Inc.*"); see also Weil & Brown, et al., *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025), § 6:602 *et seq.* Leave to